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Case Number: 25STCP02506 Hearing Date: July 14, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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LOUISIANA GLEN LP,

Petitioner(s),

vs.

CITY OF LOS ANGELES,

Respondent(s).

Case No.:

25STCP02506

Hearing Date:

July 14, 2026

[TENTATIVE] RULING ON PETITION
FOR WRIT OF MANDATE

Petitioner Louisiana Glen LP (“Petitioner”)

petitions for a writ of traditional mandate against Respondent City of Los Angeles (“Respondent”) directing it to set aside its determination that the residential rental units on its property located at 10405 W Louisiana Ave., Los Angeles CA 90025 (“Property”) is subject to the Rent Stabilization Ordinance (“RSO”), Los Angeles Municipal Code (“LAMC”) sections 151.00 to 151.35.

The petition is denied.

I.

Factual Background

When

Petitioner purchased the Property in about January 2019, it was improved with a ten-unit residential apartment building. (Cohanzad Decl., ¶ 5.)

On March

13, 2019, Petitioner filed a Notice of Intent to Withdraw the existing units from the residential market pursuant to Government Code sections 7060-7060.7 (“Ellis Act”) and LAMC sections 151.22-28. (Cohanzad Decl., ¶ 6.) Several tenants invoked mandatory one-year extended tenancy rights under Government Code section 7060.4(b) and LAMC section 151.23(B). (Cohanzad Decl., ¶ 7.) All tenants physically vacated before December 24, 2019. (Cohanzad Decl., ¶ 21; AR 570-76.) Respondent’s Housing Department (“LAHD”) confirmed the Property was fully vacated on May 13, 2020. (Cohanzad Decl., ¶ 16.)

Petitioner

demolished the previous improvements and constructed a new, sixteen-unit residential apartment building on the Property. (Cohanzad Decl., ¶ 17.) On December 24, 2024, Respondent’s Department of Building and Safety (“LADBS”) issued a Certificate of Occupancy for the new structure. (Cohanzad Decl., ¶ 17.) No new tenants moved into the Property until April 1, 2025. (Cohanzad Decl., ¶ 17.)

On April

7, 2025, LAHD’s RSO Determinations Unit issued a letter, Determination No. RD056759, concluding the new units were subject to the RSO. (Cohanzad Decl., ¶ 19.) On April 20, 2025, Petitioner challenged the determination by an email to the RSO Determinations Unit. (Cohanzad Decl., ¶ 20.) Petitioner later sent a

formal letter challenging the determination. (Cohanzad Decl., ¶ 20.) On June 5, 2025, Petitioner also sent a Conditional Exemption Application. (AR 568-69.)

II.

Procedural History

On July 7, 2025, Petitioner filed its verified petition. A proof of service filed July 17, 2025 shows Petitioner served the petition on Respondent by personal service on July 15, 2025. On August 14, 2025, Respondent filed its Answer.

On April 30, 2026, Petitioner filed its opening brief. On June 12, 2026, Respondent filed its opposition. On June 29, 2026, Petitioner filed its reply.

III.

Standard of Review

Petitioner seeks relief pursuant to Code of Civil Procedure (“CCP”) section 1085. A party may seek to set aside an agency decision by petitioning for either a writ of administrative mandamus (CCP § 1094.5) or traditional mandamus (CCP § 1085).

A petition for traditional mandamus is appropriate in all actions “to compel the performance of an act which the law specially enjoins as a duty resulting from an office, trust, or station” (CCP §1085; see *Rodriguez v. Solis* (1991) 1 Cal.App.4th 495, 501-02.) Generally, mandamus will lie when (1) there is no plain, speedy, and adequate alternative remedy (2) the respondent has a duty to perform, and (3) the petitioner has a clear and beneficial right to performance.” (*Pomona Police Officers’ Assn. v. City of Pomona* (1997) 58 Cal.App.4th 578, 583-84 [internal citations omitted].)

“Generally, mandamus is available to compel a public agency’s performance or to correct an agency’s abuse of discretion when the action being compelled or corrected is ministerial...” (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) Whether a statute imposes a ministerial duty for which mandamus is available, or a mere obligation to perform a discretionary function, is a question of statutory interpretation. (*Id.* at p. 701.)

In a petition for writ of mandate brought under CCP section 1085, “the petitioner bears the burden of pleading and proving the facts on which the claim for relief is based.” (California Correctional Peace Officers Assn. v. State Personnel Bd. (1995) 10 Cal.4th 1133, 1153.)

IV.

Evidentiary Matters

1.

Request for Judicial Notice

Respondent seeks judicial notice of the following exhibits: (1) the RSO (LAMC § 151.00-151.35) (RJN Ex. 1); (2) LAMC sections 22.600 to 22.601 (RJN Ex. 2); (3) LAMC sections 91.109.1 to 91.109.8 (RJN Ex. 3); (4) LAHD Council Transmittal: Report Back on Enforcement of Ellis Provisions of the Rent Stabilization Ordinance and Recommendation to Amend LAMC 152.22 – 151.28 on Withdrawal and Demolition of RSO Units (“Ellis Withdrawals”) and Replacement Rental Units, April 15, 2016, Council File 14-0268-S5 (RJN Ex. 4); and (5) Los Angeles Ordinance No. 184,873 (2017), Council File 14-0268-S5 (RJN Ex. 5).

The requests are granted. (Evid Code § 452(b), (c).)

2.

Evidentiary Objections

Respondent objects to portions of the Cohanzad Declaration. Respondent objects to paragraphs 19 and 20, in part, for offering legal conclusions. Paragraphs 19 and 20 include legal conclusions intermixed with factual testimony. The objections are overruled; while this evidence is admitted, the Court will disregard the legal conclusions.

The remaining objections are overruled. The evidence is admitted, and the Court will assign it the proper weight.

Petitioner objects to portions of

the Garcia Declaration. The objection to paragraph 34 is sustained for inadmissible oral testimony to prove the contents of a writing. (Evid. Code § 1523.) The remaining objections are overruled. The evidence is admitted, and the Court will assign it the proper weight.

V.

Analysis

Petitioner seeks to compel Respondent to set aside its decision that the Property is subject to the RSO. Petitioner further seeks to compel Respondent to make a new determination that the Property is not subject to the RSO, or alternatively, to provide Petitioner an opportunity to submit evidence before making a new determination. Petitioner argues Respondent (1) relied on the wrong legal standard; (2) violated Petitioner's due process rights; and (3) abused its discretion.

1.

Respondent Correctly Determined the RSO Applies to the Property

Petitioner argues Respondent applied the incorrect legal standard. Specifically, Petitioner argues the Ellis Act and RSO state that new units are subject to rent control if they are offered for lease or rent within five years of the date previous accommodations were withdrawn from the rental market, but Respondent instead calculated the time between the latest right to tenancy and issuance of a certificate of occupancy. (Pet. Op. Br. at 5.)

Government Code section 7060.2, subdivision (d), provides that public entities may apply rent control to newly constructed units if they are constructed on the same property as demolished units, and if the new units are offered for rent or lease within five years of the date the demolished units were withdrawn from rent or lease. (Gov. Code § 7060.2(d).) LAMC section 151.28, subdivision (A) applies the RSO to new units in accordance with Government Code section 7060.2, subdivision (d). (LAMC § 151.28(A).)

To obtain writ relief under CCP section 1085, the petitioner has the burden to show that the public entity has a mandatory and ministerial duty. (*Siskiyou Hospital, Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 36-37 [*"Siskiyou"*]; *Brown v.*

Department of Motor Vehicles (2026) 118 Cal.App.5th 206, 213.) The petitioner must further show that the public entity violated that ministerial duty. (Siskiyou at 37, quoting Carrancho v. California Air Resources Board (2003) 111 Cal.App.4th 1255, 1267.) A petitioner may also obtain writ relief under CCP section 1085 for abuse of discretion. (CV Amalgamated LLC v. City of Chula Vista (2022) 82 Cal.App.5th 265, 278-79.) However, Petitioner has not alleged any discretionary duty by Respondent.

Respondent argues it correctly calculated the relevant dates.

a.

The Withdrawal Date Was March 13, 2020

LAMC section 151.23, subdivision (B) provides that a unit's withdrawal date is "at least 120 days from the date of the delivery . . . of the Notice of Intent to Withdraw." (LAMC § 151.23(B).) It further provides that, if certain qualified tenants give written notice, the withdrawal date is extended "to one year after the date of delivery of that Notice". (Id.)

Here, the parties agree that Petitioner filed its Notice of Intent to Withdraw on March 13, 2019 (AR 13; Cohanzad Decl., ¶ 6.) The parties further agree such qualified tenants requested the extended one-year tenancy. (AR 526; Cohanzad Decl., ¶ 7.)

Petitioner argues that the withdrawal date should be December 24, 2019, when tenants physically vacated the units. (Pet. Op. Br. at 12; Reply at 7-8.) However, Petitioner cites no authority, statutory or otherwise, providing that the withdrawal date under either Government Code section 7060.4 or LAMC section 151.23 is determined by the date of actual vacancy. The statutory scheme defines "withdrawal" by reference to the date of delivery of the Notice of Intent to Withdraw plus the applicable statutory period, not by the date tenants happen to vacate. (LAMC § 151.23(B); Gov. Code § 7060.4(b).) Because neither provision makes actual vacatur relevant to calculating the withdrawal date, Petitioner's factual evidence regarding vacancy does not alter the statutory withdrawal date.

Petitioner further suggests that Respondent must be relying on the 2020 amendment to Government Code section

7060.4, specifically subdivision (b)(6), which establishes the “latest termination date among all tenants” rule. (Reply at 9-10.) But Respondent does not cite section 7060.4(b)(6), and the withdrawal date determined here does not depend on that subdivision. Instead, Respondent’s position relies on LAMC section 151.23(B), which independently sets the withdrawal date at one year after delivery of the Notice where qualified tenants elect an extension. Because the withdrawal date in this matter is dictated by the municipal code provision that mirrors the pre-2020 Ellis Act framework, Petitioner’s retroactivity argument is not implicated.

Thus, based on the statutory formula, the withdrawal date is one year after Petitioner delivered the Notice of Intent to Withdraw on March 13, 2019, i.e., March 13, 2020. The parties do not dispute either the delivery date or the qualified tenants’ exercise of their one-year extension rights. (AR 13, 526; Cohanzad Decl. ¶¶ 6-7.) Because the governing provisions require calculation based on these dates rather than actual vacancy, the withdrawal date is March 13, 2020.

b.

Petitioner Has Not Met its Burden

Petitioner’s briefing invokes concepts associated with discretionary or adjudicatory decision-making (e.g., such as “abuse of discretion,” failure to bridge analytic gaps, or failure to make formal findings), but Petitioner does not identify any statute requiring Respondent to exercise discretion or to issue findings when making an RSO coverage determination. The governing provisions simply direct Respondent to apply Government Code section 7060.2(d) and LAMC section 151.28(A).

Although Petitioner does not expressly articulate a mandatory ministerial duty, the Court understands Petitioner’s theory to be that Respondent was required to apply these provisions correctly by determining the statutory withdrawal date and the statutory offer date. The Court therefore construes the petition as attempting to identify a ministerial duty grounded in proper application of the statutory framework. Even assuming Petitioner has framed such a duty, Petitioner must still prove that Respondent violated it.

Pursuant to CCP section 1085, a petitioner must first identify a mandatory, ministerial duty owed by the agency

and then prove the agency violated that duty. (*Siskiyou Hosp., Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 36-37.) Petitioner attempts to shift this threshold burden by arguing that Respondent was required to establish statutory predicate facts before applying the RSO and by characterizing re-control as an “exception” that Respondent must affirmatively prove. These arguments do not alter Petitioner’s obligation under section 1085, nor do they substitute for evidence demonstrating that the statutory conditions for re-control were not met.

Here, the statutory framework governing Ellis Act re-control is mechanical. Re-control applies only if new units are “offered for rent or lease” within five years of the withdrawal date. (Gov. Code § 7060.2(d); LAMC § 151.28(A).) To show a violation of any ministerial duty under this framework, Petitioner needed to supply evidence that Respondent’s determination contradicted the statutory facts. Petitioner did not do so.

Respondent acknowledges that it used the certificate of occupancy date as a proxy for the offer date. Petitioner challenges that proxy but submits no evidence of the actual offer date. For example, Petitioner provides no declaration stating the units were first offered for rent after March 13, 2025, and no documentation showing when they were marketed. Because Petitioner’s theory depends on demonstrating that the units were not offered for rent within the five-year period, the absence of evidence on the actual offer date is fatal even under the most generous construction of Petitioner’s claimed ministerial duty.

The only undisputed dates in the record are that (1) the units could not have been offered earlier than December 24, 2024, when the certificates of occupancy issued (*Cohanzad Decl.*, ¶ 17); and (2) at least one tenant moved in on April 1, 2025 (*ibid.*). These dates establish the outer bounds of the “offer for rent” window but do not establish that Petitioner refrained from offering the units for rent until after March 13, 2025. Without evidence of the actual offer date, Petitioner cannot show that Respondent violated any mandatory duty under the Ellis Act or the RSO. Because Petitioner bears the burden under CCP section 1085 to prove such a violation, and because the record permits the inference that Petitioner may have offered the units for rent within the five year period, Petitioner has not met its burden.

2.

Respondent Did Not Violate Petitioner's Due
Process

Petitioner argues Respondent

violated its procedural due process because it received no notice or
opportunity to be heard until after Respondent made its determination.

In opposition, Respondent argues

that the California and United States Constitutions provide due process
protections only for deprivation constitutionally-protected property interests.
Respondent contends Petitioner has no constitutionally-protected interest in
not being subject to the RSO.

"A denial of due process giving

rise to a claim for relief arises only if application of the defective measure
deprives one of a constitutionally protected right." *Hillsboro Properties v.*
City of Rohnert Park (2006) 138 Cal.App.4th 379, 390 ["Hillsboro"],
citing *Los Angeles v. Heller* (1986) 475 U.S. 796, 799, *Carey v.*
Piphus (1978) 435 U.S. 247, 253-254, *Utah Animal Rights Coalition v.*
Salt Lake City Corp. (10th Cir. 2004) 371 F.3d 1248, 1260-1261, *Diesel*
v. Town of Lewisboro (2d Cir.2000) 232 F.3d 92, 103-104, *Reyes v. City*
of Lynchburg (4th Cir. 2002) 300 F.3d 449, 455-457, *Richardson v. City*
of South Euclid (6th Cir. 1990) 904 F.2d 1050, 1053-1055, cert. denied 498
U.S. 1032.) The court only examines procedural due process if it first finds a
deprivation of a protected property interest. (*American Mfrs. Mut. Ins. Co.*
v. Sullivan (1999) 520 U.S. 40, 42, citing *Mathews v. Eldridge*, 424
U.S. 319, 332.)

The constitutionally protected

right involved in rent control cases is the right to receive a fair rate of
return on one's property. (*Hillsboro* at 391.) Therefore, "¿[f]air
return is the constitutional measuring stick by which every rent control board
decision is evaluated.' (*Carson Harbor Village, Ltd. v. City of Carson*
Mobilehome Park Rental Review Bd. (1999) 70 Cal.App.4th 281, 288, 82
Cal.Rptr.2d 569.)" (*Ibid.*)

In reply, Petitioner does not

dispute that a constitutionally protected property interest must be at issue
for due process protections to apply. (See Reply at 9-10.) Instead,

Petitioner argues that its protected interest is “the statutory right of a newly constructed building to remain free from local rent control unless [Respondent] first established the recontrol conditions prescribed by section 151.28(A).” (Reply at 9.) Petitioner offers no legal authority to support the proposition that its interest in the Property not being subject to the RSO is such a constitutionally protected interest. (Ibid.)

Petitioner offers significant evidence of the impact of the RSO on its property value and expected return. (Cohanzad Decl., ¶¶ 22-28.) However, even after Respondent presents the fair return standard (Opp. at 13-14), Petitioner makes no attempt to demonstrate that the application of the RSO prevents it from receiving a fair return on the Property. (See Reply at 9-10.)

Based on the foregoing Petitioner has not met its burden to show deprivation of any constitutionally protected property interest. Accordingly, the Petitioner’s due process claim fails.

3.

Petitioner Has Not Shown Abuse of Discretion

Petitioner argues that Respondent’s determination was “arbitrary as a matter of law” for failure to make required findings and lack of evidentiary basis. Petitioner contends Government Code section 7060.2, subdivision (d), Evidence Code section 500, and Topanga Assn. for a Scenic Community v. County of Los Angeles, (1974) 11 Cal.3d 506 (“Topanga”), require Respondent to make particular factual findings to determine a property is subject to the RSO. (Pet. Op. Br. at 9-10.) Petitioner therefore concludes that, because the determination letter did not set out findings or the underlying basis for those findings, the determination was an abuse of discretion.

First, as discussed in section 1, *supra*, Petitioner neither alleges nor identifies any discretionary duty by Respondent.

Second, Topanga interpreted the requirements of CCP section 1094.5. (Topanga, *supra*, 11 Cal.3d. at 514.) CCP section 1094.5 applies to “inquir[es] into the validity of any final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is

required to be taken, and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer.” (CCP § 1094.5.) As discussed above, Petitioner had no constitutional due process right to a hearing. Petitioner cites no other legal basis requiring a hearing. (See generally Pet. Op. Br.)

Relatedly, Government Code section

7060.2, subdivision (d), does not require Respondent to conduct a hearing or make specific, explicit factual findings. (Gov. Code § 7060.2(d).) While it does specify circumstances in which a public entity may provide that newly constructed units may be subjected to rent control (namely, the new units are offered for rent or lease within five years of withdrawal of previous accommodations subject to rent control), nothing in the provision discusses any procedural requirements. (Id.)

As for Evidence Code section 500,

that statute merely provides the general standard that a party bears the burden of proof to establish the facts supporting their own claims and defenses. It has no bearing on whether Respondent abused its discretion.

Finally, LAMC section 151.28, subdivision

(A), the basis for Respondent's determination, is not discretionary, and so the abuse of discretion standard does not apply. (LAMC § 151.28(A).)

Accordingly, Petitioner has not met

its burden to show Respondent abused its discretion.

VI.

Conclusion

Petitioner has not met its burden

to show a violation of a ministerial duty, to show any discretionary duty, or to show constitutional entitlement to due process. The petition for traditional mandamus is DENIED.

Date: July 14, 2026

HON.

TIANA J. MURILLO

PLEASE TAKE NOTICE:

· Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

· If a

party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

· Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

· If the

parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.